

FIRST ENDORSEMENT

Chief Prosecutor APU, Andre Applewhite, Civilian Complaint Review Board, to Deputy Commissioner Paul M. Gamble, Department Advocate's Office, September 4, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2024-29829 against Sergeant Edwin Espinal, Tax Registry No. 934831. The case was conferenced on August 20, 2024, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince, who approved the negotiated penalty of a Command Discipline Schedule B and a forfeiture of Five (5) vacation days, after Sergeant Espinal accepted the findings and substantiation of the allegations contained in the Charges and Specifications dated January 26, 2024. Charges and Specifications are dismissed for plea purposes.

Andre Applewhite

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Chief Prosecutor APU

New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2024-29829
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, ESPINAL	FIRST EDWIN	M.I.	COMMAND 103 PRECINCT
SHIELD NO. 3384	TAX REGISTRY NO. 934831	SOCIAL SECURITY NO.		DATE APPOINTED 07/01/2004
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Sergeant Edwin Espinal, on or about August 10, 2022, at approximately 1600, while assigned to 103 PCT and on duty, in the vicinity of § 87(2)(b) Queens County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) beyond the parameters of the consent given to him by § 87(2)(b) without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.

DC Bowring
FIRST DEPUTY COMMISSIONER

9/19/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Thomas De Santis
POLICE COMMISSIONER

10/6/24
DATE

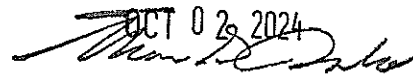
THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner September 19, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2024-29829 against Sergeant Edwin Espinal, Tax No. 934831, with the recommendation that Charges and Specifications against Sergeant Espinal be dismissed and that Sergeant Espinal receive a Schedule "B" Command Discipline, with the forfeiture of five (5) vacation days; I concur. **FOR YOUR APPROVAL.**

TIK/jpc


Tania I. Kinsella
 **FIRST DEPUTY COMMISSIONER**

APPROVED


OCT 02 2024
THOMAS G. DONLON
INTERIM POLICE COMMISSIONER